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POLITICS OF EUROPEAN INTEGRATION: CLASSROOM EXERCISE

The Ordinary Legislative Procedure: Negotiating the AI Act

A 60-minute inter-institutional role-play in which the Council, the European Parliament and the Commission negotiate three contested articles of the draft AI Act through to a trilogue outcome.

Topic tags: ordinary legislative procedure · Council–Parliament relations · trilogue · Commission proposal · AI Act · qualified majority voting · Rapporteur

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Abstract

This simulation puts students inside the EU's ordinary legislative procedure (OLP) as the Council, the European Parliament and the Commission negotiate the draft Artificial Intelligence Act. The class splits into two chambers: the Council, staffed by member-state delegations, and the Parliament, staffed by political groups. A small organising team plays the Commission, which tables its proposal and later chairs the trilogue. Debate focuses on three genuinely contested provisions of the real 2021 proposal: Article 3 (how to define an "AI system"), Article 5 (whether to ban real-time biometric identification in public spaces) and Article 6 (whether high-risk systems should be certified by self-assessment or by a national notifying body). Each chamber reads its briefs, forms a common position, and the Parliament appoints a Rapporteur; the two chambers then send representatives into a trilogue with the Commission and negotiate a single text, put to a vote. The exercise is designed to make visible how the OLP actually works: the Commission's agenda-setting role, the different voting rules and internal coalitions of the two co-legislators, and the way real EU law is increasingly settled in trilogue rather than on the floor.

Learning outcomes

By the end of this exercise students will be able to:

- Describe the roles of the Commission, the Council and the European Parliament in the ordinary legislative procedure, and explain how a proposal moves from tabling to trilogue to adoption.
- Explain how each co-legislator forms an internal position, including qualified majority voting in the Council, coalition-building among Parliament's political groups, and the function of the Rapporteur.
- Analyse the substantive trade-offs in the AI Act over the definition of AI, prohibited applications and high-risk obligations, and connect technical drafting choices to political interests.
- Evaluate critically the trilogue as a mode of law-making, weighing its efficiency against concerns about transparency and equal representation.

At a glance

Duration	60 minutes of simulation and debrief (can be compressed to 40; see Adaptation notes)
Class size	16–40 students, plus a 2–3 person organising team playing the Commission
Room setup	One room with two clusters of moveable seating (Council and Parliament), or two rooms plus a central table for the trilogue; projector for the outline and voting rules
Materials needed	Commission proposal handout; one position brief per delegation and per political group; a projected slide with the timeline and voting rules; a trilogue outcome tracking sheet; optional printed briefs for each group
Instructor prep time	45–60 minutes (allocate roles, print or share briefs, set up the tracking sheet)
Student prep time	15–20 minutes reading the Commission proposal and their own brief

Pre-class preparation

For the instructor

- Decide your class split. Aim for roughly equal chambers. The pack supplies five Council delegations (Denmark, France, Germany, Ireland, Poland) and four Parliament groups (EPP, S&D, Renew Europe, The Greens/EFA). Use as many as you need; a workable minimum is three delegations and three groups. See Appendix A for how the briefs are balanced so no single outcome is pre-cooked.
- Assign 2–3 students (or run it yourself) as the Commission. They table the proposal, answer clarifying questions, and chair the trilogue.
- Distribute the Commission proposal handout to everyone, and each delegation or group its own position brief, at least a day ahead. Give each group at least one printout at the start so students without a device can play.
- Project the timeline and the voting rules (Appendix A) so both chambers can see them throughout.
- Set up the trilogue tracking sheet (Appendix A) as a live document you can fill on screen during Round 2.

For students

- Read the Commission proposal handout and your own brief beforehand. Come ready to argue your assigned position, setting aside your personal views and outside knowledge of the real negotiations.
- Work out, in advance, which of the three articles matters most to you, where you can compromise, and which other delegations or groups are your natural allies.

Role-allocation scheme

- Split the class in two. One half sits in the **Council** as member-state delegations; the other half sits in the **Parliament** as political groups. Groups of 2–4 work well.
- Within the Parliament, the group appoints one member as **Rapporteur** (see the Rapporteur brief in Appendix B); the Rapporteur leads the drafting of the Parliament’s common position and is one of its two trilogue representatives.
- Each chamber nominates **two trilogue representatives** for Round 2. Everyone not at the trilogue table becomes the **Reflection Group**, observing and noting how the negotiation unfolds for the debrief.

Session plan

The simulation runs to 60 minutes including debrief. The scenario: the Commission has tabled the draft AI Act. Both co-legislators broadly accept the risk-based architecture but disagree on three articles. Rather than run full first and second readings, the exercise uses the now-common shortcut of going “straight to trilogue” after each chamber fixes an opening position, which is a fair likeness of how contested files are handled in practice.

Time	Phase	What happens
0:00–0:05	Introduction	The organising team explains the OLP in brief and the structure of the session. The Commission formally tables its proposal on Articles 3, 5 and 6 and takes one or two clarifying questions.
0:05–0:10	Familiarisation	Delegations and groups read their briefs, identify their priorities and red lines, and agree an opening line on each article.
0:10–0:25	Round 1: forming positions	The two chambers work in parallel. The Council debates the three articles and votes a common position by qualified majority (see rules below). The Parliament debates, appoints its Rapporteur , and agrees a common position by simple majority of the groups present. Each chamber writes its position on the three articles onto the tracking sheet.
0:25–0:28	Nominate representatives	Each chamber confirms its two trilogue representatives (for Parliament, one is the Rapporteur). Everyone else forms the Reflection Group.
0:28–0:43	Round 2: trilogue	The Commission chairs. Council and Parliament representatives negotiate a single agreed text on each of the three articles, article by article. The Commission brokers, proposing compromise wording where they deadlock. The Reflection Group observes in silence and takes notes.
0:43–0:46	Ratification vote	The compromise text is read back. Each chamber votes to accept or reject the whole package by a show of hands (Council by qualified majority; Parliament by simple majority). A file passes only if both chambers accept.

Time	Phase	What happens
0:46–1:00	Debrief	Facilitated discussion (see below). Draw in the Reflection Group first.

Voting rules

- **Council: qualified majority (simplified).** The original student design stated no threshold; use this one. Give each delegation a weight and require a **two-thirds majority of the weighted votes** to carry a common position or ratify the trilogue text. Suggested weights, loosely tracking population: Germany 4, France 4, Poland 3, Ireland 2, Denmark 2 (total 15; two-thirds is 10). With a different set of delegations, assign weights in the same spirit and set the threshold at two-thirds. Abstentions count as votes against, as under the real QMV.
- **Parliament: simple majority of the groups present.** Each political group has one vote; ties are resolved by the Rapporteur. (The real Parliament votes by majority of MEPs, but one-vote-per-group keeps the exercise tractable.)
- **Joint adoption.** As in the real OLP, the file is adopted only if *both* the Council and the Parliament accept the same text. If either rejects the trilogue package, the proposal falls; note this in the debrief as the leverage each co-legislator holds.

Debrief and reflection

Allow the full 14 minutes; this is where the institutional lessons land. Start with the Reflection Group, who watched the trilogue from outside, then bring in the negotiators. Group the questions as follows.

On the procedure (surfaces how the OLP actually distributes power):

- What did the Commission actually do once it had tabled the proposal? Did it shape the outcome, or just referee?
- The exercise jumped “straight to trilogue” and skipped formal first and second readings. What does that shortcut hide, and what does it capture accurately about how contested files are really agreed?
- Adoption required both chambers to accept the same text. How did the threat of one chamber rejecting the package shape what the negotiators were willing to concede?

Inside each chamber (surfaces internal coalition dynamics):

- Council delegations: how did qualified majority voting change your bargaining? Did you build a blocking coalition, or trade across the three articles?
- Parliament groups: what did the Rapporteur add? Did having one drafter help or narrow the group’s position?
- Where did a majority form most easily, and where did it prove hardest? Why those articles?

On the substance (surfaces the politics behind technical drafting):

- Article 3: why would anyone prefer a loose or a tight definition of “AI system”? Whose interests does each serve?

- Article 5: the split on real-time biometric identification was security against privacy. Was a genuine compromise possible, or only a winner?
- Article 6: self-assessment or a national notifying body for high-risk systems? What does the choice reveal about trust in industry versus regulators?

On the model itself (surfaces the caveats the original design flagged):

- The chambers and groups were not equally sized or weighted. Did that distort the result? Is the real EU any different?
- Where, on the evidence of your run, does most EU legislation actually get agreed: in the chamber, or in the trilogue room?

Assessment suggestions

The exercise works well ungraded. If assessment is wanted, keep it light:

- A short individual reflection (300–500 words) on two or three debrief questions, ideally one on procedure and one on substance.
- A participation mark for staying in role and engaging in the negotiation.
- A one-page group note from each delegation or group setting out the position it took on the three articles and the coalition logic behind it.
- A Rapporteur's note (from whoever held the role) explaining how they reconciled the Parliament groups into a single position.

Adaptation notes

- **Compressing to 40 minutes.** The original design ran to 40 minutes (20 + 15 + 5). To hit that, cut familiarisation to shared prep before class, run Round 1 in 15 minutes, the trilogue in 12, and a 5-minute debrief. The 60-minute version simply gives the debrief the room it needs.
- **Scaling down.** With a small class, run three Council delegations (e.g. Germany, France, Denmark) and three Parliament groups (EPP, S&D, The Greens/EFA), and reduce the Council weights so a coalition of two can still reach two-thirds.
- **Scaling up.** Add further delegations (Italy, Spain, the Netherlands, Hungary) and groups (ECR, The Left, Patriots for Europe), giving each a Council weight or a Parliament vote and a one-paragraph brief in the same house style. Do not enlarge groups beyond four; add roles instead.
- **Difficulty.** To sharpen the conflict, hand a delegation or group a hard red line on one article (for example, one delegation that will veto any package permitting public biometric identification). To ease it, pre-agree Article 3 and negotiate only 5 and 6.
- **Online delivery.** Put each chamber in its own breakout room for Round 1, then bring the four trilogue representatives and the Commission into a main room while everyone else observes with cameras on. Share the tracking sheet on screen and run votes by poll.
- **Different topic.** The Commission-tables / two-chambers-form-positions / trilogue-and-ratify structure works for any OLP file with a few contested articles. Swap the proposal handout and the briefs; the mechanics and voting rules carry over unchanged.

Appendix A: Instructor materials

A1. How the briefs are balanced

The three articles are deliberately cross-cutting, so that no chamber is internally unanimous and no single coalition sweeps all three. Read across before you run it:

	Article 3: definition	Article 5: real-time biometric ID in public	Article 6: high-risk conformity
Denmark	Tight (legal certainty)	Ban entirely	National notifying body
France	Tight-ish, workable	Allow for security and serious crime	Self-assessment, with oversight
Germany	Loose (innovation, SMEs)	Allow for counter-terrorism	Self-assessment
Ireland	Loose (innovation, EU leadership)	Ban entirely	Self-assessment
Poland	Loose	Allow for security and public order	National notifying body
EPP	Loose	Allow for counter-terrorism and missing persons	Self-assessment
S&D	Loose	Ban entirely	National notifying body
Renew Europe	Tight-ish (legal certainty for a real internal market)	Allow, but tightly limited and warranted	Self-assessment, with audit
The Greens/EFA	Tight (broad, rights-protective coverage)	Ban entirely	National notifying body

Notice that allies on one article become opponents on another (for example, Ireland and S&D agree on a loose definition but split completely on Article 5). That is by design: it forces the trilogue to trade across articles rather than settle each on a fixed bloc.

A2. Model trilogue outcome (facilitator reference, not to be handed out)

There is no single correct result, but a realistic landing zone, close to what the real institutions eventually reached, is:

- **Article 3:** a broader, more future-proof definition than the Commission’s original technique-list, framed around a system that infers outputs from inputs. The “loose” camp largely prevails, but with tighter language to satisfy the certainty-seekers.
- **Article 5:** a general prohibition on real-time biometric identification in public spaces, with narrow, warrant-gated exceptions for serious threats (terrorism, imminent threat to life, locating serious-crime suspects). This splits the difference between the “ban” and “allow” camps.

- **Article 6:** third-party conformity assessment by notifying bodies for the most sensitive high-risk uses, with self-assessment retained for the rest. A hybrid, reflecting the real compromise.

Use this only to steer a stuck negotiation, and prefer to let the class reach its own text.

A3. Trilogue tracking sheet

Recreate this as a live document. Fill each chamber's Round 1 position, then the agreed trilogue text.

Article	Council common position	Parliament common position	Agreed trilogue text
3 (definition)			
5 (biometric ID)			
6 (conformity)			

A4. Further reading

- Regulation (EU) 2024/1689 laying down harmonised rules on artificial intelligence (the AI Act), *Official Journal*, 12 July 2024. The final enacted text, for comparison with the 2021 proposal used here. Available via EUR-Lex: <https://eur-lex.europa.eu/eli/reg/2024/1689>
- European Commission (2021) *Proposal for a Regulation laying down harmonised rules on artificial intelligence*, COM(2021) 206 final. The original proposal, source of the article text summarised in the handout: <https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=CELEX%3A52021PC0206>
- European Parliament (2023) 'Trilogue negotiations: overview and practice'. On how informal trilogues work and the transparency debate around them.
- Hix, S. and Høyland, B. (2022) *The Political System of the European Union*, 4th edn. Bloomsbury. See the chapter on the legislative procedure and the roles of the co-legislators.
- Ripoll Servent, A. (2018) *The European Parliament*. Red Globe Press. On the Rapporteur, political groups, and Parliament's role in the OLP.

Appendix B: Student handouts and role briefs

Commission proposal: the draft AI Act

The Artificial Intelligence Act is a proposed EU regulation on artificial intelligence, tabled by the European Commission in 2021 and, at the time of this exercise, not yet enacted. It would set a common legal framework for AI across all sectors. As product regulation, it does not confer rights on individuals; it regulates the providers of AI systems and the entities that use them professionally.

The proposal classifies AI applications by the risk they pose, into four tiers plus a category for general-purpose AI:

- **Unacceptable risk:** banned outright. Includes AI that manipulates behaviour, social scoring, and real-time remote biometric identification (such as facial recognition) in public spaces.
- **High risk:** systems posing significant threats to health, safety or fundamental rights, for example in health, education, recruitment, critical infrastructure, law enforcement and justice. Subject to obligations of data quality, documentation, transparency, human oversight, accuracy and robustness, and a conformity assessment before going to market.
- **General-purpose AI:** added in 2023, covering foundation models. Subject to transparency requirements, with fuller evaluation for high-impact systems that could pose systemic risk.
- **Limited risk:** transparency obligations only (for example, telling users they are dealing with an AI, or labelling deepfakes).
- **Minimal risk:** most applications (spam filters, game AI). Not regulated.

For this exercise, focus on three contested provisions:

Article 3: Definition of “AI system”. The proposal defines an AI system as software developed with one or more listed techniques (machine learning; logic- and knowledge-based approaches; statistical approaches) that can, for human-defined objectives, generate outputs such as content, predictions, recommendations or decisions that influence the environments they interact with. The techniques sit in an annex the Commission could update. The political question: should the definition be **loose** (broad, future-proof, but less certain) or **tight** (narrow and precise, giving industry legal clarity but risking obsolescence)?

Article 5: Prohibited applications. The proposal bans “unacceptable risk” uses, including real-time remote biometric identification in public spaces. The political question: should that ban be **absolute**, to protect privacy and human dignity, or carry **exceptions** for policing purposes such as counter-terrorism, finding missing persons, or serious crime?

Article 6: Obligations on high-risk systems. High-risk systems must pass a conformity assessment. This can be done by **self-assessment** (the provider checks its own system) or by **third-party assessment** through a national notifying body. The political question: is self-assessment rigorous and objective enough, or should sensitive high-risk systems be certified by an independent notifying body?

Article text above is summarised from the Commission’s 2021 proposal, COM(2021) 206 final, a public EU legislative document. Consult the original via EUR-Lex for exact wording.

Denmark

Denmark wants clear, workable rules that give industry certainty and hold to high standards on rights. It stresses international alignment and good regulatory practice.

- **Article 3: definition.** *Tight.* Favours a precise definition for legal clarity and certainty about who bears which responsibilities. Emphasises clear international standards.
- **Article 5: biometric identification.** *Ban entirely.* All real-time biometric identification in public spaces should be prohibited, to protect privacy and human dignity.
- **Article 6: conformity.** *Notifying body.* Self-assessment is not rigorous or objective enough for high-risk systems; each country's notifying body should carry out the assessment.

France

France backs a strong single market for AI alongside a robust role for the state in security. It wants rules that are enforceable and that leave room for European industrial champions, while giving law enforcement the tools it argues it needs.

- **Article 3: definition.** *Workable and reasonably tight.* Wants a definition precise enough to be enforceable and to give firms legal certainty, but not so narrow that it dates quickly. Sceptical of an open-ended definition it would have to police.
- **Article 5: biometric identification.** *Allow, with limits.* Real-time biometric identification in public spaces should be permitted for serious purposes: counter-terrorism, threats to life, and locating suspects in serious crime, subject to authorisation. Views a blanket ban as disarming law enforcement.
- **Article 6: conformity.** *Self-assessment, with oversight.* Content with provider self-assessment for most high-risk systems to keep the burden proportionate, provided notifying bodies retain the power to audit. Wary of a heavy certification regime that could slow European firms.

Germany

Germany prioritises innovation and the health of its small and medium-sized enterprises, while accepting a security case on biometrics.

- **Article 3: definition.** *Loose.* Favours a broad definition for “innovation-friendly rules” that do not overburden SMEs.
- **Article 5: biometric identification.** *Allow for counter-terrorism.* Would permit real-time biometric identification in public spaces in counter-terrorism cases.
- **Article 6: conformity.** *Self-assessment.* Favours provider self-regulation to reduce the bureaucratic burden on states and firms and leave room for innovation.

Ireland

Ireland wants Europe to lead in new technology and to keep the compliance burden light, while defending privacy firmly on biometrics.

- **Article 3: definition.** *Loose.* Favours a broad definition to allow for innovation and space for European leadership in new technology.
- **Article 5: biometric identification.** *Ban entirely.* All real-time biometric identification in public spaces should be prohibited, to protect privacy and human dignity.
- **Article 6: conformity.** *Self-assessment.* Favours provider self-regulation to reduce the bureaucratic burden on states and firms and leave room for innovation.

Poland

Poland wants rules that do not choke a growing domestic tech sector, but insists on a strong state role in both security and oversight. It is comfortable giving law enforcement latitude, while distrusting industry to certify itself.

- **Article 3: definition.** *Loose.* Favours a broad definition to give its developers room to grow and to avoid locking rules to today's technology.
- **Article 5: biometric identification.** *Allow for security and public order.* Would permit real-time biometric identification in public spaces for security, counter-terrorism and public-order purposes, viewing it as a legitimate tool of the state.
- **Article 6: conformity.** *Notifying body.* Does not trust provider self-assessment for high-risk systems; wants each country's notifying body to certify them, keeping oversight in public hands.

European People's Party (EPP)

The centre-right EPP wants Europe to lead in AI and keeps a firm line on security.

- **Article 3: definition.** *Loose.* Favours a broad definition to allow innovation and space for European leadership in new technology.
- **Article 5: biometric identification.** *Allow for counter-terrorism and missing persons.* Would permit real-time biometric identification in public spaces for counter-terrorism and to find missing persons.
- **Article 6: conformity.** *Self-assessment.* Favours provider self-regulation to cut bureaucracy for states and firms and leave room for innovation.

Progressive Alliance of Socialists and Democrats (S&D)

The centre-left S&D backs innovation but puts fundamental rights and independent oversight first.

- **Article 3: definition.** *Loose.* Favours a broad definition to allow innovation and space for European leadership in new technology.
- **Article 5: biometric identification.** *Ban entirely.* All real-time biometric identification in public spaces should be prohibited, to protect privacy and human dignity.
- **Article 6: conformity.** *Notifying body.* Self-assessment for high-risk systems is neither rigorous nor objective enough; each country's notifying body should conduct the assessment.

Renew Europe

The liberal Renew group champions the single market and competitiveness. It wants rules that are clear and enforceable so that a genuine EU-wide market for trustworthy AI can form, and it dislikes both legal vagueness and heavy-handed bureaucracy.

- **Article 3: definition.** *Reasonably tight.* Prefers a precise, legally certain definition so that firms know exactly what the rules cover and a real internal market can develop. Wary of a definition so loose that it is litigated for years.
- **Article 5: biometric identification.** *Allow, but tightly limited.* Accepts real-time biometric identification in public spaces only for narrow, serious purposes under judicial authorisation, with strong safeguards. Rejects both a blanket ban and open-ended police use.
- **Article 6: conformity.** *Self-assessment, with audit.* Backs proportionate provider self-assessment for most high-risk systems to avoid burdening innovators, provided notifying bodies keep robust audit powers to catch abuse.

The Greens/EFA

The Greens/European Free Alliance put fundamental rights, transparency and the precautionary principle at the centre. They are the strongest voice for tight regulation and independent oversight.

- **Article 3: definition.** *Tight and broad in coverage.* Wants a clear definition that nonetheless captures the full range of systems that can affect people's rights, so that risky applications cannot slip outside the Act's scope on a technicality.
- **Article 5: biometric identification.** *Ban entirely.* Real-time biometric identification in public spaces should be prohibited without exception; mass surveillance of public space is incompatible with fundamental rights. Opposes any policing carve-out.
- **Article 6: conformity.** *Notifying body.* Rejects provider self-assessment for high-risk systems as marking its own homework; insists on independent, mandatory third-party certification by national notifying bodies.

Rapporteur brief

You are the Parliament's Rapporteur on the AI Act. The Rapporteur is the MEP who leads the Parliament's work on a file: you draft the Parliament's position, broker agreement among the political groups, and speak for the Parliament in the trilogue. You are appointed by the Parliament chamber at the start of Round 1 and are one of its two trilogue representatives.

Your job in this exercise:

- **In Round 1**, chair the Parliament's internal debate. Your groups will not agree on everything (compare their briefs and you will see the fault lines run differently across the three articles). Find the position that the most groups can live with, and be ready to broker trade-offs across articles: a group that loses on Article 5 may accept it if it wins on Article 6.
- **Write it down.** Produce a short Parliament common position on all three articles and enter it on the tracking sheet. Where the groups cannot fully agree, note the majority line and the dissent.
- **In the trilogue**, defend that position with the Council and the Commission, but remember your mandate is to bring back a deal the Parliament will ratify. Report back before the final vote if you have had to move.

A good Rapporteur is neither a pushover nor a partisan for their own group's line: your credibility rests on delivering a text the whole chamber can accept.

Reflection Group brief

If you are not one of the four trilogue representatives, you join the Reflection Group for Round 2. Watch the trilogue closely and take notes; you speak first in the debrief. Track the following:

- **Who drove the deal?** Did the Commission broker actively, or hold back? Did one chamber's representatives dominate?
- **What was traded?** Note any moment where a concession on one article bought agreement on another.
- **Where did it nearly break down?** Which article was hardest, and why?
- **Representation.** The chambers and groups were not equally sized or weighted. Did that visibly shape the outcome? Who was not in the room?
- **Your verdict.** On the evidence of this negotiation, where did the real decision get made: in the chambers during Round 1, or at the trilogue table in Round 2?